

		<u>Motions to Compel Responses to Special interrogatories and Requests for Production, and Motion to Deem Matters Admitted</u> Defendant Sub-Zero Excavating, Inc.’s motions to compel responses to its first sets of special interrogatories and requests for production, and to deem the matters admitted in its first set of requests for admission, are DENIED AS MOOT to the extent they seek an order compelling responses or deeming matters admitted. Plaintiff Alberto Palomera Coronado served verified responses to the requests for admission roughly 1.5 hours after these motions were filed (see Hanassab Decl. ¶¶ 11-12, Ex. A [email serving the responses at 3:51 p.m. on 4/7/26]), and served verified responses to the special interrogatories and requests for production on 8/10/26. (<i>Id.</i> ¶ 20, Ex. C.) Sanctions remain at issue. (Cal. Rules of Court, rule 3.1348(a).) Sanctions are GRANTED in the total amount of \$4,980 (or \$1,660 per motion) against plaintiff only, payable within 30 days of notice. (See Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c), 2033.280, subd. (c).) The Case Management Conference is CONTINUED to January 14, 2027, at 9:30 a.m. in Department C12. Defendant Sub-Zero shall give notice of all of the above.
6.	Beijing Luode Property Management Co., Ltd. vs. Qin 26-01542885	1. Motion for Attorney Fees 2. Motion to Dismiss
7.	Tran vs. Ali Sadeghi M.D. Inc. 25-01509640	Motion to Enforce Settlement Plaintiff Hannah Khanh Tran’s motion to enforce settlement is GRANTED, in the amount of \$126.04 in unpaid interest. (Code Civ. Proc., § 664.6 [authorizing motion]; Ex. A to moving papers, §§ 2, 15.) Moving party is also granted \$2,910.00 in fees and costs. (<i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1361 [fees/costs authorized if provided for in settlement agreement]; Ex. A to moving papers, § 15.) Moving party has shown that one of the two initial payments due, in the amount of \$20,000.00, was not paid by its initial due date, nor by

the 4-7-26 deadline imposed by moving party's notice and demand to cure. (Park Decl., ¶¶ 2-5; Ex. A to moving papers, § 2 [payment schedule]; Ex. B to moving papers, 3-31-26 Park email ["If payment is not in the Westminster office by April 7 close of business, my client will exercise the acceleration clause in Paragraph 14 and also seek her attorney's fees pursuant to Paragraph 15"].)

The missing \$20,000.00 payment was received on 4-10-26, and the remaining payments were all paid on or before their respective due dates. (Ex. A to moving papers, § 2 [payment schedule]; Sadeghi Decl., ¶¶ 6-7; Naddour Decl., ¶¶ 4-5; Hattendorf Reply Decl., ¶ 4 [acknowledging receipt of payments on 4-10-26, 5-18-26, 6-15-26, and 7-13-26].) Accordingly, the full settlement amounts have been paid.

Moving party seeks interest on the entire unpaid balance, due to the acceleration clause. (Ex. A to moving papers, § 14 [default and acceleration]; see also Hattendorf Reply Decl., ¶ 6.) However, as to interest, the settlement agreement provides: "Interest on any unpaid amounts shall accrue at the rate of ten percent (10%) per annum from the date such amounts were originally due until paid in full." (Ex. A to moving papers, § 15; emphasis added.) Only the first \$20,000.00 payment was late; all other payments were made on or before the date they were "originally" due. Thus, moving party is entitled to interest on the missed \$20,000.00 payment for the period of 3-18-26, when it was "originally due," until 4-10-26, when it was "paid in full," i.e. 23 days. The court calculates this amount as \$126.04, based on daily interest at 10% per annum (\$5.48 per day).

Moving party is also granted \$2,910.00 in fees and costs, which amount the court finds were reasonably and necessarily incurred. The court has reduced the hourly rates to \$300.00/hour for attorney Yerzinkian, \$450.00/hour for attorney Hattendorf, and \$600.00/hour for attorney Park, which are more commensurate with prevailing rates in the Orange County market. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700 ["market rate" fee determination "is generally based on the rates prevalent in the community where the court is located"]; *Nishiki v. Danko Meredith, APC* (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) The court has also reduced the hours for motion preparation, which appear to the Court to be slightly excessive for this relatively straightforward motion.

Moving Plaintiff shall give notice.